

MT.4 Where to File Directory

The department's own list of certified local programs — sorted by what each one actually covers — the state and county offices that own everything else, and a page to write down what you confirmed.

Before you use this document

This is a process reference, not legal advice. Montana's building code does not apply to a residential building of fewer than five dwelling units unless the local legislative body has adopted it (50-60-102(1)(a), MCA) — but the electrical permit, the energy code, and all of water and wastewater law survive that exemption, on separate tracks with separate offices. Confirm every item with the office that will actually issue it.

ONE LIST ANSWERS ALMOST EVERYTHING

Montana makes this easier than most states, because there is a single published list and it is short. A county, city, or town *"may not enforce a building code unless the code enforcement program has been certified by the department"* (50-60-302(1)), and the Building Codes Program publishes every certified program with letter codes for the disciplines it covers. The department's own summary of everywhere else is one sentence: **"All other areas are under the jurisdiction of the State Building Codes Bureau."**

So: find your city or county on the list below. If it is not there, no local building program has jurisdiction over your parcel — and because the state *"may not enforce"* the building code against a residential building of fewer than five dwelling units (50-60-102(2)), **no building permit exists for your house**. If it is there, read the letters, because they decide which of your four permits is local and which is still the state's.

The number that reframes the whole state

Montana has **56 counties**. On the department's certified list, **six county-level programs appear at all** — and two of those, Pondera and Toole, are certified for **commercial buildings only**. Every other county in Montana runs no building program whatsoever, which means that outside the incorporated cities and towns named below, the ordinary Montana house is built with **no building permit, no plan review, and no building inspection** — and with the electrical permit, the energy certification, and the county septic approval still fully in force. That is the state this kit is written for.

THE CERTIFIED PROGRAMS — SORTED BY WHAT THEY COVER

Transcribed from the department's published list in August 2026, using its own key: **B** = Building, **P** = Plumbing, **M/G** = Medical Gas, **E** = Electrical, **M** = Mechanical, **SP** = Pool, **W** = WUI. The list carried a revision date of **July 30, 2026** when this was transcribed. Unless a county is named, the jurisdiction is the **city limits** only — and that is statutory, not administrative: "A city or town that adopts a building code under this chapter may enforce its building code **only within the incorporated limits**" (50-60-304(1)). Montana gives city building codes no extraterritorial reach at all, so a parcel across the road from town is state jurisdiction. Do not confuse this with the extraterritorial mileage rules you may have read about — those are *zoning* under 76-2-310, a different subject.

Certified local government programs (as published, August 2026)

What the program covers	Jurisdictions
All four trades B, P, E, M the local office handles everything	Belgrade · Billings · Bozeman · Columbia Falls · Darby · Great Falls · Hamilton · Helena · Kalispell · Manhattan · Missoula (City) · Missoula County · Polson · Stevensville · Whitefish
Building only B (some add SP) electrical AND plumbing stay with the state	Choteau · Colstrip (<i>residential only</i>) · Conrad · Cut Bank · Deer Lodge County (<i>residential only</i>) · Deer Lodge (City) (<i>residential only</i>) · East Helena · Forsyth · Glasgow · Hardin (<i>residential only</i>) · Havre · Laurel · Lewistown · Libby (<i>residential only</i>) · Livingston · Pondera County (<i>commercial only</i>) · Red Lodge · Richland County (<i>county except Sidney</i>) · Ronan · Shelby · Sidney · Toole County (<i>commercial only</i>) · Townsend · Troy (<i>residential only</i>) · West Yellowstone (<i>residential only</i>)
Some trades, not all read these letters twice	Silver Bow (county) — B, P, M, SP: building, plumbing, and mechanical are local, but electrical is not , so a Butte-Silver Bow house takes its electrical permit to the state. · Miles City — B, SP, E (<i>residential only</i>): the mirror case, electrical local but plumbing and mechanical with the state.
Wildland-urban interface W	Only Bozeman , Columbia Falls , Great Falls , and Whitefish are certified for the WUI code. Building in the trees anywhere else means ignition-resistant construction and defensible space are yours to choose — see MT.2.

Read the letters, not the town's size

Building-only certification is the most common kind on this list. Twenty-five of the roughly forty programs are certified for building and nothing else — so in those towns you will file a local building permit at city hall and then buy a **state electrical permit** from the Building Codes Program for the same house, with a state inspector driving to the site. Two different governments, two different applications, two different schedules, and neither one will remind you about the other.

The department states the electrical rule plainly on its own permits page: "*State electrical permits are required on **all electrical work performed in Montana**, except in cities, counties and towns certified to issue electrical permits and conduct inspections.*" The plumbing and mechanical pages carry parallel statements. So the question is never "do I need an electrical permit" — it is only "**from whom.**"

And this list moves. Programs certify, and they decertify: a local government that voluntarily gives up its program must notify the department at least **90 days** beforehand and keeps responsibility for finishing inspections and issuing certificates of occupancy on projects it already permitted (50-60-302(4)); if certification is revoked, "*the state resumes its original jurisdiction*" (50-60-302(3)). Re-check the list before you buy any permit, and be careful with a project that straddles a change.

Certified jurisdiction list and key transcribed as published at bsd.dli.mt.gov → Building Codes Program → Certified City, County and Town Programs, August 2026; the department's statement that "All other areas are under the jurisdiction of the State Building Codes Bureau" appears on the same page. Trade-jurisdiction statements from the Electrical, Plumbing, and Mechanical Permits pages, same site. 50-60-302(1), (3), (4); 50-60-102(2), MCA. This kit prints no phone numbers and no building officials' names — both change; write what you confirmed in the directory below.

A right you did not know you had, new in 2025

If a permit office delays your project or issues a stop-work order, it has to tell you **which code section** it is relying on. Under **50-60-119**, added by Ch. 483, Laws of 2025, a department or local government that fails to cite the specific provision within **seven business days** of the delay or stop-work order is subject to a penalty of **\$50 a day**. Ask for the citation in writing, politely, on day one — it is the fastest way to convert a vague objection into a specific one you can actually resolve.

STATE AND COUNTY OFFICES — WHO OWNS WHICH PIECE

Offices and what each is actually for

Office	Why you would go there	Route
Building Codes Program DLI	The certified-jurisdiction list; state electrical, plumbing, and mechanical permits and inspections; the adopted code editions; snow and wind load information; inspection areas.	bsd.dli.mt.gov → Building Codes Program
Electrical Safety Program DLI	The Homeowner Electrical Permit — a form published specifically for homeowners personally performing work on their own home — plus the residential, commercial, alternative-energy, and transfer forms, and an Electrical Information Pamphlet. Permits may be bought online through the state business portal at ebiz.mt.gov .	bsd.dli.mt.gov → Electrical Permits (note: it is bsd.dli.mt.gov — plain dli.mt.gov/building-codes is a dead link)

Offices and what each is actually for

Office	Why you would go there	Route
Construction Contractor Program	The construction contractor license required by 37-45-201 since January 1, 2026 — and the lookup you use to verify anyone you hire on the date of the contract , which is what switches on your 37-45-202 shield (MT.1).	dli.mt.gov → Licensing → Lookup a License
Independent Contractor Exemption Certificate	The ICEC program (39-71-417). Every one-person trade you engage should hold one; ask for a copy and file it.	dli.mt.gov → ICEC Program
Board of Electricians · Board of Plumbers	License verification for any electrician or plumber you hire, and the boards' rules. Remember a Montana-licensed electrician or plumber working within the scope of the license is exempt from the contractor chapter (37-45-104(16)).	dli.mt.gov → Professional Boards
Secretary of State — ARM	The Administrative Rules of Montana. Title 24, chapter 301 carries every adopted code edition and every Montana amendment to it — including the plumbing fixture table at 24.301.351.	rules.mt.gov
Montana Legislature — MCA	Official statute text with a History line on every section, which is how you catch a repeal. Title 50 chapter 60 for permits; Title 37 chapters 45, 68, 69 for licenses.	mca.legmt.gov
DEQ	Subdivision sanitation review and the wastewater program — the approval that decides whether a rural lot can carry a house at all. See MT.2.	deq.mt.gov → Water
DNRC	Water rights, well permitting and exempt wells, and the forms filed after a well is drilled. Also the state floodplain program that local governments administer.	dnrc.mt.gov → Water Resources
Your county	The septic permit and site evaluation (county sanitarian or environmental health), the 911 address assignment , the road approach permit, floodplain administration, and zoning where the county has any. None of this is affected by the building-code exemption.	County government site → Environmental Health / Planning / Road Dept.

Routes read from each agency's own site navigation, August 2026. 37-45-104(16), 37-45-201, 37-45-202, MCA; 39-71-417, MCA. Deep links rot faster than domains — the navigation route is printed on purpose.

THE FIVE QUESTIONS, AND WHO TO ASK

Ask these separately — the answers are independent of each other

Question	Who answers it
Is there a building permit for my house?	Your city or county — but check the certified list first, because if they are not on it the answer is no and you can stop. If they are on it, ask whether the local legislative body adopted the code for residential buildings of fewer than five dwelling units (50-60-102(1)(a)).
Who issues my electrical permit?	Read the letters on the certified list: an E means local, no E means the Building Codes Program. Ask separately from the building question — the answers differ constantly.
Does my lot have sanitation approval?	Your county environmental health office or sanitarian, and DEQ. Ask before you buy land, not after — MT.2 explains why this is the question that can end a project.
What is my ground snow load?	The rule sends you to ASCE/SEI 7-22 via the ASCE 7 Hazard Tool, 30 psf minimum (ARM 24.301.154(5)). The department's own snow-load page still cites a 2004 study — the rule governs . Record your figure and its source.
What will it take to get power?	Your power supplier — an investor-owned utility or a rural electric cooperative; both are bound by 50-60-605. Ask about line extension cost and lead time in the same conversation, because on a rural parcel that is usually the longest pole in the whole job.

YOUR DIRECTORY — FILL THIS IN BEFORE YOU NEED IT

Confirm each entry with the office itself rather than copying it from a search result, and write the date. In a small Montana county office a name is worth more than a number.

BUILDING PERMIT OFFICE — city or county — or write NONE, and note the date you confirmed the parcel is outside every certified program

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

ELECTRICAL PERMIT + INSPECTOR — state Building Codes Program, or the certified local program if its listing shows E

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

PLUMBING / MECHANICAL — asked separately — the answer can differ from both building and electrical

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

COUNTY ENVIRONMENTAL HEALTH — septic permit, site evaluation, final approval — and whether the lot already has sanitation approval

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

DEQ — SUBDIVISION SANITATION — the certificate that may gate the septic permit; ask before you buy land

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

DNRC — WATER RIGHTS / WELL — exempt well limits, and what must be filed after the well is drilled

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

COUNTY ADDRESSING / ROAD DEPT. — 911 address assignment and the road approach permit — both are commonly prerequisites

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

FLOODPLAIN ADMINISTRATOR — usually the county planning office; ask even if you think you are clear of the mapped area

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

POWER SUPPLIER — utility or rural electric cooperative — line extension, temporary service, and what releases the permanent meter

Office / department: _____ Phone: _____

Portal / address: _____ Spoke with: _____ Confirmed: _____

Sources (verified August 2026): the certified jurisdiction list, its key, and its July 30, 2026 revision date — bsd.dli.mt.gov, Building Codes Program. Per-trade statements — the Electrical, Plumbing, and Mechanical Permits pages. City limits only — 50-60-304(1); certification and the 90-day notice — 50-60-302; the residential exemption — 50-60-102(1)(a), (2); citation-or-penalty — 50-60-119, MCA.